

ENTERPRISE MASTER SERVICES AGREEMENT & NDA

This Mutual Non-Disclosure Agreement (the 'Agreement') is entered into as of September 1, 2026, by and between:

- Apex Cloud Dynamics Inc., a Delaware corporation ('Disclosing Party'), and
- Quantum Data Systems Ltd., a tech provider ('Receiving Party').

1. PURPOSE & PROPRIETARY INFORMATION

The parties intend to explore strategic cloud infrastructure integrations and proprietary AI pipeline development.

2. CONFIDENTIALITY STANDARD OF CARE

Recipient agrees to hold Discloser's Proprietary Information in confidence using the same degree of care it uses for its own confidential assets, but not less than reasonable care.

4. TERM & DURATION OF OBLIGATIONS (CLAUSE 4.3 - HIGH DURATION)

The confidentiality obligations hereunder shall survive execution and endure for a term of ten (10) years from the Effective Date, or indefinitely thereafter for all intellectual property and proprietary algorithms disclosed.

SECTION 8.2: UNILATERAL INDEMNIFICATION & LIABILITY [HIGH RISK CLAUSE]

Customer shall indemnify, defend, and hold harmless Vendor against any and all claims, liabilities, and damages without limitation, whether direct, consequential, or exemplary. Neither Vendor nor its affiliates shall be subject to any financial liability cap under this Agreement.

SECTION 14.1: GOVERNING LAW & OVERSEAS ARBITRATION [JURISDICTION RISK]

This Agreement shall be governed by and construed in accordance with the laws of the Canton of Zurich, Switzerland, submitting to exclusive overseas court jurisdiction and Swiss Rules of International Arbitration.

16. INTELLECTUAL PROPERTY RIGHTS

Vendor retains exclusive worldwide ownership over all underlying models, weights, schemas, and derivative integrations.

For: Apex Cloud Dynamics Inc.
Name: Sarah Jenkins, VP Legal

For: Quantum Data Systems Ltd.
Name: Marcus Vance, Managing Director